

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

Case No: 2026-066952

In the matter between:

WILBUR WILLIAM MATTHEE (Identity Number: 8909035151087)	Applicant
and	
BRUNO FERNANDES (Lead Independent Director)	First Respondent
DR NKATEKO MUNISI (Chairperson: Social and Ethics Committee)	Second Respondent
MS ALICE LE ROUX (Chairperson: Audit and Risk Committee)	Third Respondent
MR GERALD VAN WYK (Chief Executive Officer)	Fourth Respondent
LSM MPUMLWANA (Group Company Secretary)	Fifth Respondent
AFROCENTRIC INVESTMENT CORPORATION LIMITED (Registration No. 1988/000570/06, JSE: ACT)	Sixth Respondent

PRACTICE NOTE

Urgent Section 162 Delinquency Application – Rule 6(12)

Nature of the application

This is an urgent application in terms of Rule 6(12) of the Uniform Rules of Court for:

- (a) A primary declaratory finding under **Section 60(3) of the Employment Equity Act 55 of 1998** that each of the First to Fourth Respondents is deemed to have contravened the EEA, constituting an independent and self-standing statutory basis for the delinquency relief sought;
 - (b) An order declaring the First to Fifth Respondents **delinquent directors and officers** in terms of Section 162(5)(c) and/or (d) of the Companies Act 71 of 2008, for a period not less than seven years, alternatively placing them under probation in terms of Section 162(7);
 - (c) Consequential **damages** jointly and severally against the First to Fifth Respondents, in an amount to be determined by this Honourable Court; and
 - (d) Costs on the **attorney-and-client scale**.
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Basis for urgency

The Applicant faces confirmed eviction from his residence at 15 Bellevue Street, Voorbrug, Cape Town, 7100, at the end of March 2026. He has no income, no running water since January 2026, and his SANC registration has lapsed — rendering him unable to practise as a Registered Nurse. He carries a formal clinical diagnosis of severe depression and PTSD confirmed by a specialist psychiatrist. The urgency is **not self-created** — it flows from nine formal escalations to the Respondents, including a Priority 1 Material Risk Report placed before the Board on 9 December 2025 with 38 attachments, and formal engagement with 11 regulatory and statutory institutions, all

of which failed to provide redress. Substantial redress is not possible in the ordinary course.

Status of the matter

The application is **unopposed**. No notice of intention to oppose has been filed. The Respondents have been notified of this application by email at their personal and corporate email addresses simultaneously with the filing of this application.

Issues for determination

The following issues arise for determination by this Honourable Court:

#	Issue	FA Reference
1	Urgency — Rule 6(12)(b): whether the Applicant cannot be afforded substantial redress in due course	FA paras 46–46.5
2	Standing — s162(2)(a): shareholder with adequate interest under s162(4)	FA paras 4–8 and 7A.1–7A.4
3	Primary standalone ground — Section 60 EEA deemed contravention as self-standing basis for delinquency	FA Section 9A (paras 37A–37J)
4	Director delinquency — s162(5)(c) and/or (d): gross negligence, wilful misconduct, breach of trust	FA Sections 7, 10, 11
5	Pattern of institutional silence across nine escalations spanning 9 December 2025 to 14 March 2026	FA Section 10 (paras 38–41)

6	Quantum of consequential damages and interest from 23 July 2025	FA Sections 8–9, NOM prayer 9–10
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Key annexures

The following Annexures are identified as critical to the determination of this application and are marked with ★ in the Founding Affidavit. The Honourable Judge is respectfully directed to these documents as a priority:

- (a) **"Annexure B"** — July 2025 payslip confirming Normal Earnings of R36,588.81 and the unlawful deduction of R14,811.77 (40.47%) — the primary statutory violation;
- (b) **"Annexure C" ★** — GRC1: Priority 1 Material Risk Report with 38 attachments, including at Section 4A an explicit warning of personal director liability under Section 60 of the EEA — the document that placed all Individual Respondents on express formal and statutory notice;
- (c) **"Annexure D5"** — Formal Notice of Resignation Due to Automatically Unfair Constructive Dismissal, invoking Section 186(1)(e) and Section 187(1)(h) of the Labour Relations Act, delivered to directors personally at their personal email addresses on 12 December 2025;
- (d) **"Annexure D9" ★** — Final Good Faith Notice delivered to each Individual Respondent via the Company Secretary on 14 March 2026, confirming pre-filing notice of this application;

- (e) **"Annexure E" ★**— CRO Suppression Email of 18 December 2025 directing the Applicant to cease communicating with the Board — primary evidence of active institutional suppression; and
 - (f) **"Annexure F" ★**— Cheryl-Dawn Modern written admission of the B-BBEE naming convention mechanism dated 19 January 2026 — primary fronting evidence, confirming the scheme in the Sixth Respondent's own words.
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EEA Section 60 — primary standalone ground — note to the Court

The Applicant draws this Honourable Court's attention to **Section 60 of the Employment Equity Act 55 of 1998** as the primary and self-standing statutory ground for the delinquency relief sought, operating in conjunction with and independently of the Section 162 application.

The P1 Material Risk Report (Annexure C) constitutes formal notification under Section 60(1) of the EEA. At Section 4A of that report, headed “Legal and Regulatory Risks,” the document stated with precision: *"Personal liability for directors under Section 60 of EEA."* The Individual Respondents were not merely placed on notice of underlying conduct — they were placed on notice of the specific statutory mechanism that would render them personally liable if they failed to act.

Their failure to take any step — investigative, corrective, or interim — across nine escalations spanning more than three months triggers the deeming provision of Section 60(3): the Sixth Respondent, and by extension the Individual Respondents in their

directorial capacities, are deemed to have contravened the EEA. That deemed contravention constitutes gross negligence and wilful misconduct within the meaning of Section 162(5)(c) and (d). Full argument is set out in Section 9A of the Founding Affidavit (paragraphs 37A to 37J).

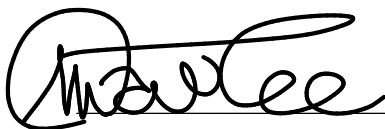
Compliance

- The application bundle is indexed and paginated.
 - All Annexures (“A” to “G”, including sub-annexures D1 to D9) are attached and referenced in the Founding Affidavit.
 - The Respondents have been served by email at their personal and corporate email addresses.
 - The Founding Affidavit was signed and sworn before a Commissioner of Oaths on 19 March 2026.
 - The Applicant is self-represented.
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Estimated duration

30 minutes (unopposed motion).

DATED at **CAPE TOWN** on this **24th** day of **MARCH 2026**.



WILBUR WILLIAM MATTHEE

APPLICANT – SELF-REPRESENTED

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Case No: 2026-066952

OCJ Reference: HCGS953346

Hearing: 25 March 2026 at 10:00

Court: Western Cape High Court, Keerom Street, Cape Town